

2. 9:00 AM CASE NUMBER: C25-02047

CASE NAME: PETER MOREN VS. KATHRYN ROGERS

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC trails the Discovery Motion, Line 24. If the tentative ruling for Line 24 is not contested, then the CMC is continued to October 27, 2026 at 8:30 a.m. in Department 16. The Parties are ordered to meet and confer to discuss alternative dispute resolution and are ordered to file a further case management conference statement.

3. 9:00 AM CASE NUMBER: C24-00719

CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC trails the Motion to Strike in Line 16. If the tentative ruling for Line 16 is not contested, then the CMC is continued to July 23, 2026 at 8:30 a.m. in Department 16. The Parties are ordered to meet and confer to discuss alternative dispute resolution and are ordered to file a further case management conference statement.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-01214

CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA

HEARING IN RE: MOTION TO DISMISS

FILED BY:

TENTATIVE RULING:

Defendant Viktoriya Volzhenina's Motion to Dismiss the Action Pursuant to Code of Civil Procedure §§ 583.210 and 583.250 is off calendar.

On January 2, 2026, Plaintiffs filed a notice of appeal from the court's December 19, 2025 order, which granted Defendant's motion to set aside the default and quash service of the summons and first amended complaint. The appeal is pending in Court of Appeal Case No. A175307, First Appellate District, Division 2.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (CCP § 916(a).)

"The purpose of the rule depriving the trial court of jurisdiction during the pending appeal is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The

rule prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it. (*In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381.)

“Accordingly, whether a matter is 'embraced' in or 'affected' by a judgment within the meaning of section 916 depends upon whether postjudgment trial court proceedings on the particular matter would have any impact on the 'effectiveness' of the appeal. If so, the proceedings are stayed; if not, the proceedings are permitted.” (*Ibid.*; see also, *Elsa v. Saberi* (1992) 4 Cal.App.4th 625, 629.)

Granting this motion would dismiss the action entirely, rendering the appeal moot. Accordingly, the Court declines to rule pending resolution of the appeal. Defendant may re-notice the motion after the remittitur issues.

5. 9:00 AM CASE NUMBER: C22-01563
CASE NAME: CATHERINE ANGWIN GASCA VS. CITY OF BRENTWOOD
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

The City of Brentwood’s motion for summary judgment and/or adjudication is **denied**.

The City brings this a motion for summary judgment, or alternatively, a motion for summary adjudication, however, the notice of motion did not specify the issues for adjudication. (Rules of Court, rule 3.1350(b).) Further, the issues listed in the separate statement are not issues appropriate for adjudication. “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c(f)(1).) Finally, there is only one cause of action for dangerous condition of public property alleged against the City and thus, this motion is properly one for summary judgment only.

Plaintiff alleges that on June 18, 2021, she “tripped and fell on or near Garin Pkwy and Sunset Rd., Brentwood, County of Contra Costa, on a pre-existing uneven sidewalk, owned or controlled by City of Brentwood”. (Comp. p. 4.)

A claim for dangerous condition of public property is permitted by statute, Government Code section 835. “That statute provides in pertinent part that ‘a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either: [¶] (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition... ’ (Gov. Code, § 835.)” (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1133.)

There are two main issues here: (1) whether the defect in the sidewalk was a dangerous condition and (2) whether the City had notice of the defect.